

TENTATIVE RULING(S) FOR June 12, 2026

Department S37 – Judge Winston Keh

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CIVSB2404950

RAMIREZ VS HIGH TECH

TENTATIVE RULING(S):

Before the Court are four discovery motions seeking to compel further responses from the Defendants High Tech Logistics, LLC and Instaship, LLC, filed by Plaintiff Blanca Ramirez. Plaintiff filed the present motions to compel Instaship LLC and High Tech Logistics to provide further responses to requests for production; and further responses to Special Interrogatories. The motions included declarations by S. Phillip Song, Esq., and a separate statement. The Court (Judge Dauber) heard the four motions to compel further responses on March 17, 2026, and directed the parties to meet and confer further. On April 16, 2026, both Stanley J. Park, Esq. and R. Scott Brink, Esq. submitted declarations regarding further meeting and conferring.

ANALYSIS

Purpose of Discovery. The scope of discovery is broad, and doubts concerning the permissibility of discovery are generally resolved in favor of allowing discovery. (Code of Civil Procedure, section 2017.010; *Advanced Modular Sputtering, Inc. v. Superior Court* (2005) 132 Cal.App.4th 826, 837; *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119.) This includes questions of relevancy. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 98.) “Unless otherwise limited by order of the court in accordance with [the discovery statutes], any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter” (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546 citing Code Civ. Proc., § 2017, subd. (a); see also *Smith v. Superior Court* (1961) 189 Cal.App.2d 6, 11-12.)

“[P]arties may conduct discovery ‘regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.’” (*Perlan Therapeutics, Inc. v. Superior Court* (2009) 178 Cal.App.4th 1333, 1351, fn.12, citing Code Civ. Proc., § 2017.010.) With respect to whether a request will lead to the discovery of admissible evidence, the party seeking discovery is entitled to substantial leeway, and doubts are resolved in favor of allowing discovery. (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761.) Relevance should be construed liberally and doubts should generally be resolved in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.) Moreover, “[i]nformation is relevant if its discovery will tend to promote settlement or assist in preparation for trial.” (*Norton, supra*, 24 Cal.App.4th at 1760.)

To establish “good cause,” the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some

issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) In the context of discovery, evidence is relevant if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement. (*Id.*) Absent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The fact that there is no alternative source for the information sought is an important factor in establishing “good cause” for inspection. But it is not essential in every case. (*Associated Brewers Distrib. Co., Inc. v. Superior Court* (1967) 65 Cal.2d 583, 588.)

Here, there is good cause to grant the discovery. Seeking policies and contact information of other employees who may be witnesses or suffered the same issue, is sufficient.

Focus of the Motions. The main issues with all discovery motions are the Defendants’ claims that Plaintiff never worked for them and they have no records of Plaintiffs employment. Their cases concern precertification discovery in class actions to seek a new class representative (*CVS Pharmacy, Inc. v. Sup. Ct* (2015) 241 Cal. App.4th 300) or a representative that does not have standing pursuant to the complaint. (*First American Title Ins. Co. v. Sup Ct.* (2007) 146 Cal.App.4th 1564.) However, the first amended complaint asserts that Plaintiff “worked for Defendants” (FAC, ¶ 7) and “each Defendant, directly or indirectly, or through agents or other persons, employed Plaintiff and the other employees described in the class definitions below, and exercised control over their wages, hours, and working conditions. Plaintiff is informed and believes and thereon alleges that, at all relevant times, each Defendant was the principal, agent, partner, joint venturer, officer, director, controlling shareholder, subsidiary, affiliate, parent corporation, successor in interest and/or predecessor in interest of some or all of the other Defendants, and was engaged with some or all of the other Defendants in a joint enterprise for profit, and bore such other relationships to some or all of the other Defendants so as to be liable for their conduct with respect to the matters alleged below. Plaintiff is informed and believes and thereon alleges that each Defendant acted pursuant to and within the scope of the relationships

alleged above, that each Defendant knew or should have known about, and authorized, ratified, adopted, approved, controlled, aided and abetted the conduct of all other Defendants. (FAC, ¶12.)

Plaintiff seeks to compel a further response to RFP, # 8, 10-17, 22-25 and 27; and special interrogatories #1-48. The Requests for Production seek:

RFP, #8. ALL DOCUMENTS showing, describing, explaining, or RELATING to the organizational structure of YOUR operations in the State of California over the last five (5) years, including, but not limited to, the organizational structure of its administrative departments, operations departments, executive departments and all parent and sister corporations.

RFP, #10. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies, practices and procedures regarding minimum wage for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #11. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies, practices and procedures regarding overtime for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #12. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies, practices and procedures regarding recording of time for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #13. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies, and procedures regarding the provision of rest breaks for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, # 14. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies, and procedures regarding the provision of meal breaks for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #15. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies and procedures regarding scheduling of meal and/or rest breaks for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #16. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies and procedures regarding premium pay for violation of meal break law for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #17. All DOCUMENTS that RELATE to, reflect, refer to, or record YOUR policies and procedures regarding premium pay for violation of rest break law for CLASS MEMBERS during the RELEVANT TIME PERIOD.

RFP, #22. All TIMESHEETS for all CLASS MEMBERS in their native format.

RFP, #23. All PAY RECORDS for all CLASS MEMBERS in their native format.

RFP, #24. All reimbursement records for all CLASS MEMBERS.

RFP, #25. All DOCUMENTS that show, describe, or explain the job descriptions and/or duties for each hourly-paid and/or non-exempt job position during the RELEVANT TIME PERIOD.

RFP, #27. All DOCUMENTS that RELATE TO, reflect, refer to or record the conditions for receiving any of the bonuses or incentives YOU offered to CLASS MEMBERS during the RELEVANT TIME PERIOD.

Plaintiff seeks to compel special interrogatories, #1-48. These special interrogatories seek the contact information for former and current putative class members; the number of former and current putative class members; a description of Defendant's wage and hour policies and practices related to payment of wages, meal and rest breaks, reimbursements, and bonuses; a description of how Defendant calculated the regular rate of pay for purposes of overtime compensation; identification of all bonuses and incentives offered by Defendant; a description of the conditions for receiving the bonuses and incentives; and information regarding all of Defendant's businesses related to High Tech Logistics, LLC and/or InstaShip, LLC.

This discovery is really covered by *Williams v. Superior Court LLC* (2017) 3 Cal.5th 531, 541, and is allowable. *Williams* states:

A party may use interrogatories to request the identity and location of those with knowledge of discoverable matters. (Code Civ. Proc., § 2030.010.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422 [15 Cal. Rptr. 119, 364 P.2d 295]; see *Greyhound Corp. v. Superior Court*, *supra*, 56 Cal.2d at p. 388.) While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 [23 Cal. Rptr. 393, 373 P.2d 457].)

Accordingly, Williams was presumptively entitled to an answer to his interrogatory seeking the identity and contact information of his fellow Marshalls employees. Marshalls had the burden of establishing cause to refuse Williams an answer. The trial court was limited to determining whether, for any objections timely interposed, Marshalls had carried that burden. (See *Coy v.*

Superior Court, supra, 58 Cal.2d at p. 222; *West Pico Furniture Co. v. Superior Court, supra*, 56 Cal.2d at p. 414.)

The *Williams* Court then denied the objections based on overbreadth, where it stated that it had previously allowed contact information of potential fellow class members and cited numerous cases. “We recognize that in a particular case there may be special reason to limit or postpone a representative plaintiff’s access to contact information for those he or she seeks to represent, but the default position is that such information is within the proper scope of discovery, an essential first step to prosecution of any representative action.” (*Williams, supra*, 3 Cal.5th at 544.) The Court also denied “the modicum of substantial proof” required prior to discovery. (*Id.*, at 545.)

Williams, supra, at 547, continues stating:

However, nothing in *Pioneer Electronics (USA), Inc. v. Superior Court, supra*, 40 Cal.4th 360 or its progeny depends on these features to justify the discovery ordered. Access to contact information will often be warranted even before the adequacy of the named plaintiff and counsel’s representation has been vetted, a class certified, absent putative class members made parties, and heightened duties imposed. (See *Crab Addison, Inc. v. Superior Court, supra*, 169 Cal.App.4th at pp. 962, 969–975; *Lee v. Dynamex, Inc., supra*, 166 Cal.App.4th at pp. 1337–1338; *CashCall, Inc. v. Superior Court* (2008) 159 Cal.App.4th 273, 292–296 [71 Cal. Rptr. 3d 441]; *Belaire-West Landscape, Inc. v. Superior Court, supra*, 149 Cal.App.4th at pp. 556, 562.) Even were we to assume, without deciding, that counsel owes a fiduciary duty to absent class members from the moment a complaint is filed, before certification (see *Kullar v. Foot Locker Retail, Inc.* (2011) 191 Cal.App.4th 1201, 1206 [121 Cal. Rptr. 3d 353]; *In re GMC Pick-Up Truck Fuel Tank Products Liability Litigation* (3d Cir. 1995) 55 F.3d 768, 801), the existence of any such duty would supply neither the rationale nor a necessary condition for discovery of the contact information of those with potentially aligned interests.

While the differences between a class action and a PAGA action bear minimal relation to the reasons fellow employee contact information is discoverable, the similarities between these forms of action directly pertain. In a class action, fellow class members are potential percipient witnesses to alleged illegalities, and it is on that basis their contact information becomes relevant. (*Pioneer Electronics (USA), Inc. v. Superior Court*, *supra*, 40 Cal.4th at p. 374; *Crab Addison, Inc. v. Superior Court*, *supra*, 169 Cal.App.4th at p. 969; *Puerto v. Superior Court*, *supra*, 158 Cal.App.4th at p. 1254.) Likewise in a PAGA action, the burden is on the plaintiff to establish any violations of the Labor Code, and a complaint that alleges such violations makes any employee allegedly aggrieved a percipient witness and his or her contact information relevant and discoverable. (See Lab. Code, § 2699, subds. (c), (g)(1); Code Civ. Proc., § 2017.010; *Sakkab v. Luxottica Retail North America, Inc.*, *supra*, 803 F.3d at p. 438 [“The amount of penalties an employee may recover is measured by the number of violations an employer has committed, and the violations may involve multiple employees”].)

As for undue burden, the *Williams* Court, *supra* at 550, stated:

The Code of Civil Procedure does not authorize a trial court to interpose a proof of the merits requirement before ordering responses to interrogatories in the absence of any evidence of the burden responding would entail, and trial courts lack discretion to augment the limitations on discovery established by the Legislature. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402 [55 Cal. Rptr. 3d 751].)

Finally, as to privacy, *Williams*, *supra*, at 553 states:

In turn, *Pioneer Electronics* was extended to wage and hour class actions by *Belaire-West Landscape, Inc. v. Superior Court*, *supra*, 149 Cal.App.4th 554. Before class certification, the named plaintiff sought statewide employee contact information for the preceding five years. While fellow employees generally had a reasonable expectation of privacy in their contact information, the court doubted they would have “wish[ed] it to be withheld from a class action plaintiff who seeks relief for violations of employment laws.” (*Id.* at p. 561.) Nor was any prospective invasion of privacy serious: “the information, while personal, was not particularly sensitive, as it was contact information, not medical or financial details.” (*Id.* at pp. 561–

562.) Moreover, the balance of competing interests favored disclosure even more clearly than in *Pioneer Electronics*; “at stake [was] the fundamental public policy underlying California’s employment laws.” (*Belaire-West*, at p. 562.) The *Belaire-West* trial court was correct to order disclosure, subject to employees being given notice of the action, assurance they were under no obligation to talk to the plaintiffs’ counsel, and an opportunity to opt out of disclosure by returning an enclosed postcard.

Courts subsequent to *Belaire-West* have uniformly applied the same analysis to reach the same conclusion: In wage and hour collective actions, fellow employees would not be expected to want to conceal their contact information from plaintiffs asserting employment law violations, the state policies in favor of effective enforcement of these laws weigh on the side of disclosure, and any residual privacy concerns can be protected by issuing so-called *Belaire-West* notices affording notice and an opportunity to opt out from disclosure. (See *Crab Addison, Inc. v. Superior Court*, *supra*, 169 Cal.App.4th 958; *Lee v. Dynamex, Inc.*, *supra*, 166 Cal.App.4th 1325; *Puerto v. Superior Court*, *supra*, 158 Cal.App.4th 1242.)

Therefore, the Court GRANT the motions as to both the Special Interrogatories and the above Requests for Production. The names of the potential class members should be redacted, and a *Belaire West* process should be discussed between the parties. The parties should meet and confer on the issue as to an administrator and/or a way to eventually identify who the employee is and their information.

Specifically, as to the RFPs, the Court GRANTS a further response to RFPs, # 8, 10-17, 22-25 and 27 subject to an appropriate opt out notice and procedure set forth in *Belaire-West Landscape, Inc. v. Sup. Ct.* (2007) 149 Cal.App.4th 554. Any information regarding class members should be turned over in a way to protect class member information until the parties have met and conferred and the *Belaire-West* process has been completed.

As to the SROGs, subject to the same condition, the Court GRANTS further responses to #1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, and 48. The members involved; their hourly rate; the companies’ policies, procedures, witnesses, and documents regarding

keeping time, overtime, rest periods, meal periods, payroll records, timely paying wages, reimbursing business expense, calculating the regular rate of pay for purposes of overtime compensation; bonus or incentives; staffing agencies and labor contractors that provided class members; identifying all business locations in California; all business entities doing business as Defendant within the state of California; and owned by Defendants; all business entities which are parent companies or subsidiaries of Defendants; are all relevant questions requiring answers.

Defendants must provide further code-compliant responses on or before June 29, 2026.

Sanctions. A court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand, unless it finds that the one subject to the sanction acted with substantial justification, or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2031.310, subd. (h).) Plaintiff claims he spent 5 hours drafting each motion and expects to spend three hours reviewing the opposition, drafting the reply and attending the hearing. Song claims his hourly rate is \$775 per hour and seeks \$7,035.00 for fees on each motion. The parties should have worked together and the Defendants should have answered the above discovery. For these motions, the Court grants \$1,500 against each Defendant and their counsel of record, joint and several, for a total of \$3,000, due on or before June 18, 2026. This is more the going rate of a discovery motion in San Bernardino County.